

complaint

Mr and Mrs T have complained about the decision by UK Insurance Limited ("UKI") to reject their theft claim under their travel insurance policy, saying their valuables were not left "unattended".

background

Mr and Mrs T had an annual travel insurance policy, underwritten by UKI, to cover their holiday. Whilst they were travelling, they stopped in their car at a service station for a toilet break. Mrs T left her bag in the foot well of the car with a cardigan over it. When they returned to the car, they noticed that the bag had been stolen. They reported the theft to the police and submitted a theft claim to UKI.

UKI rejected Mr and Mrs T's claim on the grounds that the policy excluded cover for valuables and personal belongings that had been left unattended in a motor vehicle. Mr and Mrs T were dissatisfied with UKI's decision. They said that the car was not left unattended as they took it in turns to go to the toilet and were never more than eight to ten feet away from it at any time.

The complaint was investigated by an adjudicator who considered that Mr and Mrs T had left their possessions "unattended" since they were not able to see the thief. He also considered that they had breached the policy condition requiring them to take reasonable care of their belongings. In his opinion, it was reasonable for UKI to reject the claim.

Mr and Mrs T did not accept the adjudicator's view. They said the car was not left unattended as they were in close proximity at all times. They explained Mrs T could not lock the bag in the boot of the car because it was an estate car and any items left in the rear of the car would have been visible through the back and side windows. As they were in close proximity of the car, they said there was no need for Mrs T to take the bag with her.

my findings

I have considered all the available evidence and arguments to decide what is fair and reasonable in the circumstances of this complaint.

The issue for me to determine is whether it was fair and reasonable for UKI to reject Mr and Mrs T's theft claim.

I have considered the complaint as sympathetically as possible since I appreciate that the theft caused Mr and Mrs T significant financial loss and substantial inconvenience.

The policy makes it plain that UKI will not meet claims for theft of personal possessions and valuables if they have been left in an unattended motor vehicle. The policy does not define "unattended" and therefore the word must be given its normal common sense interpretation.

I accept Mr and Mrs T's evidence that they took it in turns to visit the toilet facilities and one of them remained in the vicinity of the car at all times. They have also said they were travelling with a dog and taking it in turns to look after it.

It is clear from Mr and Mrs T's letters that neither of them had any idea that someone had opened the car door and removed Mrs T's bag until they were about to drive away. I therefore conclude that the car was "unattended" since they were not in a position to prevent a theft or even to notice when someone approached their car.

I distinguish this situation from one where the consumer sees the theft taking place, but is unable to prevent its occurrence; for example, where the thief runs away quickly. I consider that an insurer should meet a claim where the consumer is standing next to his car but is not quick enough to stop the thief. Mr and Mrs T have pointed out that many thefts are by stealth, but this was not similar to a situation where a bag has been snatched from them. In this case, the fact that neither **Mr T nor Mrs T** had any inkling that a theft had taken place shows they were not “attending” to their car or the possessions left inside it.

Despite having great sympathy for Mr and Mrs T’s predicament, I am satisfied that it was fair and reasonable for UKI to reject their claim. In my judgment, there is no reasonable basis upon which I could conclude that UKI should make any payment to Mr and Mrs T.

my final decision

It is my final decision that UK Insurance Limited was entitled to reject Mr and Mrs T’s claim.

I make no award against UK Insurance Limited.

Reidy Flynn
ombudsman